

Conclusion and Ruling

Plaintiff's motion for leave to amend her complaint is **GRANTED**. Plaintiff shall meet and confer with counsel for PG&E regarding the claims to be included in the new First Amended Complaint in light of PG&E's position that several of the claims may be time-barred or otherwise defectively pled. Taking into account the parties' further meet and confer efforts, Plaintiff shall file her first amended complaint **by August 3, 2026**.

4. 9:00 AM CASE NUMBER: C25-01269

CASE NAME: CRAIG ISHIMARU VS. JULIA ISHIMARU

***HEARING ON MOTION IN RE: APPOINTMENT OF APPRAISER PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 874.316; MEMORANDUM OF POINTS AND AUTHORITIES**

FILED BY: ISHIMARU, JULIA A

TENTATIVE RULING:

Defendant Julia Ishimaru ("Defendant") filed a motion for appointment of an appraiser (the "Motion re Appraiser") on February 25, 2026. The Motion re Appraiser was set for hearing on July 6, 2026.

Background

This action was filed May 5, 2025 seeking partition and accounting of real property held jointly by Defendant and plaintiff Craig Ishimaru ("Plaintiff"). See Complaint filed May 5, 2025 (the "Complaint"), ¶¶1-2. Defendant filed the Motion re Appraiser on February 25, 2026 offering two potential appraisers to be appointed in accordance with Code of Civil Procedure section 874.316. See Memorandum of Points and Authorities filed February 25, 2026 as part of Motion re Appraiser ("MPA"), p. 3. The proof of service attached to the Motion re Appraiser reflects service on Plaintiff's counsel. See Proof of Service dated February 25, 2026 as part of Motion re Appraiser. It should be noted that Plaintiff now represents himself. See Substitution filed June 18, 2026.

In a reply to the Motion re Appraiser, Defendant indicates that one of the proposed appraisers, Eric Riseberg, was appointed as the appraiser for separate proceedings in Alameda County. See Reply re Motion for Appointment of Appraiser filed June 26, 2026 (the "Reply"), p. 2. Defendant further describes meet and confer efforts with Plaintiff where Plaintiff indicated willingness to stipulate appointing either of Defendant's proposed appraisers. *Id.*

The Motion is unopposed.

Analysis

The Partition of Real Property Act ("PRPA") governs actions seeking partition of real property where there is no agreement to the contrary. See Code Civ. Proc. § 874.313(a). As a preliminary matter, the court must determine the fair market value of the subject property by ordering an appraisal, unless the parties have agreed to its value or the evidentiary value of the appraisal is outweighed by its cost. *Id.* § 874.316(a), (b), (c). The court shall appoint a disinterested appraiser, licensed in California, to determine the value assuming sole ownership. *Id.* § 874.316(d). Once the appraisal is completed, the appraiser shall file a verified appraisal with the court. *Id.*

Here, the parties agree that the action is governed by PRPA, and it is apparent that the parties agree to the appointment of an appraiser. See Complaint, ¶¶21-23; MPA, p. 3; Reply, p. 2. The Court sees

no evidence suggesting an agreement to the property's value nor that appraisal is overly costly. As such, the Court appoints Eric Riseberg to appraise the subject property pursuant to Code of Civil Procedure section 874.316.

Disposition

The Court hereby finds and orders as follows:

1. The motion re Appraiser is GRANTED.
2. The Court appoints Eric Riseberg to appraise the subject property pursuant to Code of Civil Procedure section 874.316(d).
3. A sworn or verified appraisal is to be filed with the Court upon completion of the appraisal pursuant to Code of Civil Procedure section 874.316(d).
4. Moving party to prepare the order after hearing.

5. 9:00 AM CASE NUMBER: C25-01650
CASE NAME: SANDY PARK VS. RENE GAMBOA
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: GAMBOA, RENE
TENTATIVE RULING:

Before the Court is a demurrer to the first amended complaint. For the reasons set forth, the demurrer is **SUSTAINED, WITHOUT LEAVE TO AMEND**.

Background

Plaintiff Sandy Park filed her complaint against her former attorney, Rene Gamboa, and his law firm, Lewis Brisbois Bisgaard & Smith, LLP (the "Firm") commencing this action on June 12, 2025. After the Court sustained a demurrer by defendants, Plaintiff filed her operative first amended complaint ("FAC") to which defendants again demur.

Plaintiff alleges that Gamboa and the Firm represented her as a plaintiff in a lease dispute with a defendant Kim. (FAC ¶¶ 1, 2.) The prior action out of which Plaintiff's claims against defendants arise is Case No. 19-CV-341095 in the Superior Court for the County of Santa Clara (the "Kim Action"). (FAC ¶ 1.)

Park alleges she retained defendants to represent her in the Kim Action in March 2021. (FAC ¶ 16.) She alleges defendants withdrew from her representation on an ex parte basis "shortly before trial." (FAC ¶¶ 2, 19 [in July 2023 approximately six weeks before trial].) Defendants "formally terminated" their attorney-client relationship with Plaintiff on or about July 25, 2023. (FAC ¶ 22.)

Plaintiff alleges on or about July 18, 2023, defendants contacted Plaintiff's handwriting expert and "discussed evidentiary issues central to the Kim action" without Plaintiff's knowledge or consent. (FAC ¶ 23.) The "contact compromised Plaintiff's litigation position" and required her to retain a new expert. (FAC ¶ 24.)

Trial was held in the Kim Action in December 2023. (FAC ¶ 25.) Plaintiff acknowledges the court in the Kim Action issued a Statement of Decision on February 20, 2024. (FAC ¶ 26.) She alleges that the Statement of Decision "was not the final judgment," that she filed a motion for new trial which was